County Council Meeting
Beaufort County, SC

Council Chambers, Administration Building
Beaufort County Government Robert Smalls Complex
100 Ribaut Road, Beaufort

Monday, April 13, 2026
6:00 PM

MINUTES

Watch the video stream available on the County's website to hear the Council's discussion of a specific topic or the complete meeting https://beaufortcountysc.new.swagit.com/videos/381932

1. Call to Order

Chair Howard called the meeting to order at 6:05 PM

Present
Chair Alice Howard
Vice-Chair Anna Maria Tabernik
Council Member David Bartholomew
Council Member Paula Brown
Council Member Logan Cunningham
Council Member Gerald Dawson
Council Member York Glover
Council Member Mark Lawson
Council Member Lawrence McElynn
Council Member Joseph Passiment
Council Member Thomas Reitz

2. Pledge of Allegiance and Invocation

Council Member Bartholomew led the Pledge of Allegiance and gave the invocation.

3. Statement of Compliance with FOIA

Chair Howard stated that public notification of this meeting had been published, posted, and distributed in compliance with SC FOIA.

4. Approval of Agenda

Motion: It was moved by Council Member Passiment, seconded by Council Member Bartholomew to approve the agenda.

Motion to Amend: It was moved by Council Member McElynn, seconded by Council Member Lawson to amend the agenda to go into Executive Session at this point to discuss an item related to Green Space.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion to amend passed 11:0.

Motion to Amend: It was moved by Council Member McElynn, seconded by Council Member Lawson to amend the agenda to add an action item before the Approval of Consent Agenda. It would be approval of a request from the Green Space Committee to make $200,000 of Green Space funds available to be used as earnest money by the Nature Conservancy to provide to the owners of the Palmetto Bluff—Pioneer Land & Timber Tracts, and which would be considered to be part of the due diligence which was previously authorized by the Natural Resources Committee on February 3rd.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion to amend passed 11:0.

Main Motion: It was moved by Council Member Passiment, seconded by Council Member Bartholomew to approve the agenda as amended twice.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The main motion passed 11:0.

5. Executive Session

Motion: It was moved by Council Member Cunningham, seconded by Council Member McElynn to go into Executive Session.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

No matters came out of Executive Session

6. Approval of Minutes

Motion: It was moved by Council Member Glover, seconded by Council Member Passiment to approve the minutes from County Council Workshop on March 10, 2026 and the minutes from Caucus and County Council on March 23, 2026.

The Vote - Voting Yea: Council Member Howard, Council Member Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, Council Member Reitz

7. Proclamations

a. Proclamation recognizing April as Sexual Assault Awareness Month.

Vice-Chair Tabernik presented a proclamation to Hopeful Horizons recognizing April as Sexual Assault Awareness Month.

b. Proclamation recognizing April as Child Abuse Prevention Month.

Council Member Bartholomew presented a proclamation to Hopeful Horizons and CAPA recognizing April as Child Abuse Prevention Month.

8. Administrators Report

Please watch the video stream on the county's website to view the full report.
https://beaufortcountysc.new.swagit.com/videos/381932

9. Public Comment Period

Public comments were taken.

10. Liaison and Committee Reports

Please watch the video stream on the county's website to view the full report.
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11. Agenda Item

a. Approval of a request from the Green Space Committee to make $200,000 of Green Space funds available to be used as earnest money by The Nature Conservancy to provide to the owners of the Palmetto Bluff - Pioneer Land & Timber Tracts, and which would be considered to be part of the due diligence which was previously authorized by the Natural Resources Committee on February 3, 2026.

Motion: It was moved by Council Member McElynn, seconded by Council Member Dawson to approve a request from the Green Space Committee to make $200,000 of Green Space funds available to be used as earnest money by The Nature Conservancy to provide to the owners of the Palmetto Bluff - Pioneer Land & Timber Tracts, and which would be considered to be part of the due diligence which was previously authorized by the Natural Resources Committee on February 3, 2026.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

12. Approval of Consent Agenda

Motion: It was moved by Council Member Reitz, seconded by Council Member Cunningham to approve the consent agenda.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

* Council Member McElynn stepped out

CONSENT AGENDA

a. Items Originating from the Public Facilities Committee

1. Approval of a contract for APAC Atlantic for Beaufort County Year 9 resurfacing project ($3,836,594.16.)

2. Approval of a contract for APAC Atlantic to resurface Haig Point rd in front of the Daufuskie Island Fire Department. ($425,150.00)

3. Approval of a Task Order with Kimley Horn for design services for a right turn lane on Ladys Island Drive to Ribaut Road. ($151,205.00)

4. Approval of a contract to Stantec Consulting Services, Inc for Beaufort County 2018 Sales Tax US 21 Design & Engineering Services Projects ($422,329.33)

5. Approval of a contract to Davis & Floyd for Beaufort County 2018 Lady's Island Access Road Design & Engineering Services Project ($1,288,607.91)

6. Approval of a contract for four Elevator Modernizations via OMNIA Purchasing Cooperative ($842,487)

7. Approval of Contract to Nix Construction for the design services portion of the Design/Build project of the Daufuskie Island Frances Jones Park Community Center ($440,704.00)

END OF CONSENT AGENDA

13. Ordinances for Second Reading

a. 2026/08: An ordinance to amend Ordinance 2023/26 to reallocate funds previously appropriated for Daufuskie Island Ferry embarkation points to Sun City Joint Fire/EMS Station (Station #39). **PUBLIC HEARING**

The vote at Finance, Administration, and Economic Development Committee on March 16, 2026 - 8:0
The vote at First Reading on March 23, 2026 - 11:0
N/A

Motion: It was moved by Council Member Cunningham, seconded by Council Member Passiment to approve Second Reading and Public Hearing of Beaufort County Ordinance 2026/08.

Vice-Chair Tabernik opened the floor for public comment.

No one came forward.

Vice-Chair Tabernik closed the floor for public comment.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

* Council Member McElynn stepped out

b. 2026/09: An Ordinance to reallocate the funds from the 2025 Series GO Bond for Passive Parks projects. **PUBLIC HEARING**

The vote at Finance, Administration and Economic Development Committee on March 16, 2026 - 8:0
The vote at First Reading on March 23, 2026 - 11:0
N/A

Motion: It was moved by Council Member Passiment, seconded by Council Member Bartholomew to approve Second Reading and Public Hearing of Beaufort County Ordinance 2026/09.

Vice-Chair Tabernik opened the floor for public comment.

No one came forward.

Vice-Chair Tabernik closed the floor for public comment.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

c. 2026/06: An Ordinance adding a new Section 54-8 to the Beaufort County Code of Ordinances so as to prohibit and make unlawful the discharge of firearms in certain unincorporated areas of the county, to provide the penalty pertaining to such violations, and to provide certain exceptions and limitations thereto.

The vote at Community Services and Public Safety Committee on February 3, 2026 - 6:2
The vote at First Reading on February 23, 2026 - 7:4
Public Hearing was held on March 9, 2026
The vote to postpone Second Reading until the March 23, 2026 County Council Meeting - 10:0
The vote to send back to Community Service and Public Safety Committee for revisions at the County Council Meeting on March 23, 2026 - 11:0

Motion: It was moved by Council Member Passiment, seconded by Council Member McElynn to approve Second Reading of Beaufort County Ordinance 2026/06.

The Vote - Voting Yea:

Voting Nay: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion failed 11:0.

14. Ordinances for First Reading

a. 2026/10: An Ordinance to reallocate remaining American Rescue Plan Act (ARPA) funds in the amount of $739,108.13 towards existing projects as obligated to the Department of Treasury.

The vote at Finance, Administration, and Economic Development Committee on March 16, 2026 - 8:0

Motion: It was moved by Council Member Cunningham, seconded by Council Member Passiment to approve First Reading of Beaufort County Ordinance 2026/10.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

b. 2026/11: An Ordinance Authorizing the County Administrator to Execute the necessary documents and provide funding for the purchase of real property located at 641 Sea Island Parkway.

The vote at Finance, Administration, and Economic Development Committee on March 16, 2026 - 8:0

Motion: It was moved by Council Member Passiment, seconded by Council Member Cunningham to approve First Reading of Beaufort County Ordinance 2026/11.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

c. 2026/12: An Ordinance authorizing the County Administrator to execute the necessary documents to convey five parcels of real property TMS Nos. R120 005 000 0105 0000, R120 005 000 0127 0000, R120 005 000 0132 0000, R120 005 000 132A 0000, R120 005 000 0133 0000, to the Beaufort Jasper Housing Trust for development of attainable housing in partnership with Beaufort Memorial Hospital and other matters related thereto.

The vote at Public Facilities Committee on March 16, 2026 - 7:0

Motion: It was moved by Chair Howard, seconded by Council Member Bartholomew to approve First Reading of Beaufort County Ordinance 2026/12.

Motion to Amend: It was moved by Council Member Bartholomew, seconded by Chair Howard to amend the Ordinance to a 5-year window for completion.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion to amend passed 11:0.

Main Motion: It was moved by Chair Howard, seconded by Council Member Bartholomew to approve First Reading of Beaufort County Ordinance 2026/12 as amended.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The main motion passed 11:0.

d. 2026/13: An Ordinance to amend Beaufort County's Ordinance Chapter 38 Environment, Article VII Green Space Program, Section 38-196 Method of Program and Procedures of the Beaufort County Code of Ordinances.

The vote at Natural Resources Committee on April 06, 2026 - 7:0

Motion: It was moved by Council Member Passiment, seconded by Council Member McElynn to approve First Reading of Beaufort County Ordinance 2026/13.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

e. 2026/14: An Ordinance adding a new Section 54-8 to the Beaufort County Code of Ordinances so as to prohibit and make unlawful the discharge of firearms in certain unincorporated areas of the county, to provide the civil penalty pertaining to such violations, and to provide certain exceptions and limitations thereto.

The vote at Community Services and Public Safety Committee on April 6, 2026 - 9:0

Motion: It was moved by Council Member Brown, seconded by Council Member Passiment to approve First Reading of Beaufort County Ordinance 2026/14.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

f. 2026/15: An Ordinance to add a new Ordinance Section 54-9 Hate Intimidation Crime establishing the offense of hate intimidation and establishing a penalty for violations in the Beaufort County Code of Ordinances.

The vote at Community Services and Public Safety Committee on April 6, 2026 - 9:0

Motion: It was moved by Council Member McElynn, seconded by Council Member Dawson to approve First Reading of Beaufort County Ordinance 2026/15.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Dawson, Council Member Glover, Council Member McElynn, Council Member Passiment, and Council Member Reitz.

Voting Nay: Council Member Cunningham, and Council Member Lawson

Abstaining: Council Member Bartholomew. The motion passed 8:2:1

g. 2026/16: An Ordinance authorizing the County Administrator to execute the necessary documents to convey a parcel of real property TMS No. R100 033 00A 021B 000 to the Habitat for Humanity of the Lowcountry for development of workforce/affordable housing and other matters related thereto.

The vote at Community Services and Public Safety Committee on March 2, 2026 - 7:0

Motion: It was moved by Chair Howard, seconded by Council Member Passiment to approve First Reading of Beaufort County Ordinance 2026/16.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

15. Resolutions

a. 2026/11: A Resolution of Beaufort County, South Carolina, encouraging the South Carolina General Assembly to adopt a Comprehensive Hate Crime Bill.

The vote at Community Services and Public Safety Committee on April 6, 2026 - 9:0

Motion: It was moved by Council Member Passiment, seconded by Council Member Glover to approve Beaufort County Resolution 2026/11.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

b. 2026/12: A Resolution authorizing the County Administrator to execute the documents necessary and to provide funds to contribute to the procurement by the applicant, the Open Land Trust, for a

conservation easement on property located in unincorporated Jasper County known as the Chelsea Tracts (TMS# 081-00-02-001, 081-00-02-008 and 081-00-02-009), for the requested amount ($2,000,000)

The vote at Natural Resources Committee on April 6, 2026 - 7:0

Motion: It was moved by Council Member Brown, seconded by Council Member Lawson to approve Beaufort County Resolution 2026/12.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

c. 2026/13: A Resolution authorizing the County Administrator to execute the documents necessary and to provide funds to contribute to the procurement by the applicant, the Open Land Trust, for a conservation easement on property located in unincorporated Beaufort County known as the Victoria Bluff Tracts (PIN# R600 032 000 0002 0000, R600 032 000 0003 0000), for the requested amount ($7,470,000)

The vote at Natural Resources Committee on April 6, 2026 - 7:0

Motion: It was moved by Council Member Brown, seconded by Council Member McElynn to approve Beaufort County Resolution 2026/13.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

d. 2026/14: A Resolution approving the Beaufort County Fleet Services policy - Public Access Vehicle Charging Station.

The vote at Community Services and Public Safety Committee on April 6, 2026 - 9:0

Motion: It was moved by Council Member Bartholomew, seconded by Council Member Glover to approve Beaufort County Resolution 2026/14.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

16. Adjournment

COUNTY COUNCIL OF BEAUFORT COUNTY

Alice G. Howard

BY: _____
Alice G. Howard, Chairman

ATTEST:

Sarah W. Brock, Clerk to Council
Ratified: April 27, 2026